

Judicial Service Commission Act, 2016

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Judicial Service Commission Act, 2073 (2016)

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Amending Acts

1. Some Nepal Acts Amendment Act, 2082 (2025) 2082.04.14

Act Number 6 of the year 2073 (2016)

An Act Made to Amend and Consolidate the Laws relating to the Functions, Duties and Powers of the Judicial Service Commission

Preamble: Whereas, it is expedient to amend and consolidate the prevailing laws relating to the functions, duties and powers of the Judicial Service Commission in relation to making recommendations for appointment, transfer, promotion to gazetted posts of the Federal Judicial Service or for departmental punishment to any employee serving in such post, and conducting examinations for appointment to the post of District Judge;

Now, therefore, the Legislature-Parliament, pursuant to clause (1) of Article 296 of the Constitution of Nepal, has enacted this Act. Chapter - 1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Judicial Service Commission Act, 2073 (2016)."

(2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act, -

(a) "Chairperson" means the Chairperson of the Commission.

(b) "Commission" means the Judicial Service Commission pursuant to Article 154 of the Constitution.

(c) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(d) "District Judge" means the Judge of a District Court appointed pursuant to clauses (b) and (c) of sub-article (2) of Article 149 of the Constitution.

(e) "Member" means a Member of the Commission.

(f) "Service" means the Federal Judicial Service.

(g) "Constitution" means the Constitution of Nepal. Chapter - 2

Functioning of the Commission

3. Secretariat of the Commission: (1) There shall be a Secretariat of the Commission for the functioning of the Commission.

(2) Unless otherwise provided by the Commission, the Secretariat of the Commission shall be located at the place where the Judicial Council Secretariat is situated. 4. Meeting of the Commission: (1) A meeting of the Commission shall be held on such date, time and place as the Chairperson may specify, as required.

(2) The Secretary of the Commission shall fix the date and time for the meeting of the Commission and shall send a notice, including the agenda for discussion in the meeting, to all Members at least forty-eight hours prior to the time of the meeting.

Provided that, if there is a reasonable and sufficient cause, the Chairperson may, stating such cause, call a meeting of the Commission even without forty-eight hours prior notice.

(3) If any Member desires to discuss any matter other than the matters mentioned in the agenda under sub-section (2), such Member shall give a notice to the Secretary of the Commission, stating the matter desired to be discussed and the reason therefor, at least twenty-four hours prior to the meeting. Upon receipt of such notice, the Secretary of the Commission shall forthwith inform the Members thereof.

(4) Notwithstanding anything contained in sub-sections (2) and (3), with the consent of all Members present at the meeting of the Commission, a matter not included in the agenda may also be discussed and decided.

(5) The presence of the Chairperson and two other Members shall constitute a quorum for a meeting of the Commission.

(6) The decision of the Commission shall be made by a majority vote, and in case of a tie, the Chairperson shall have a casting vote.

(7) Record of the decisions of the Commission shall be prepared and kept by the Secretary of the Commission, signed by the Chairperson and Members.

(8) Other procedures relating to meetings of the Commission shall be as determined by the Commission. 5. Secretary of the Commission: (1) The Secretary of the Judicial Council shall act as the Secretary of the Commission.

(2) In addition to the functions, duties and powers mentioned elsewhere in this Act, the other functions, duties and powers of the Secretary of the Commission shall be as follows: -

- (a) to implement or cause to implement the decisions of the Commission,
- (b) to keep the records in the Secretariat of the Commission updated, systematic and secure,
- (c) to assign work to the employees of the Commission by dividing work,
- (d) to monitor, control and supervise the workings of the Secretariat of the Commission,
- (e) to inform the concerned person or body of the decisions of the Commission,
- (f) to contact and coordinate with the Government of Nepal and other concerned bodies as required,
- (g) to perform other functions as assigned by the Commission.

(3) The Secretary of the Commission may delegate any of the powers vested in him/her to any gazetted officer under him/her, as required. 6. Employees of the Commission: Unless otherwise provided by the Commission, the work of the Secretariat of the Commission shall be performed by the employees of the Judicial Council Secretariat. Chapter - 3

Recommendation and Consultation

7.

Preparation of Schedule: The Commission shall make and implement a necessary schedule to make matters relating to appointment or promotion of gazetted employees of the Service transparent and predictable. 8.

Demand for Vacancy Filling: For filling vacant posts of the Federal Judicial Service in the second class gazetted and above, the concerned body shall fill in the demand form as prescribed and send it to the Commission. 9.

Determining Percentage and Writing to Conduct Examination: (1) After receiving the demand pursuant to section 8, the Commission shall determine the number of posts to be filled through open or internal competitive examination and by promotion, according to the percentage mentioned in the prevailing law relating to the Service, for filling the posts of first class and second class gazetted employees of the

Service. (2) The Commission shall write to the Public Service Commission to conduct an examination for selecting suitable candidates to recommend for the posts allocated for filling through open and internal competitive examination under sub-section (1). 10. To Make Recommendation: (1) The Commission shall, while recommending the appointment, transfer or promotion of gazetted officers of the Service, do so in accordance with the prevailing law relating to the Service. (2) The Commission shall, while performing its functions, base itself on the principle of proportional inclusiveness as per the Constitution. (3) Other provisions relating to recommendation shall be as prescribed. 11.

Consultation Regarding Departmental Action: (1) When consulting the Commission for imposing departmental punishment on an employee serving in a gazetted post of the Service, the procedure under the prevailing law relating to service conditions shall be completed, and the original file, along with the decision of the punishing authority specifying the punishment sought to be imposed on the employee, after evaluation of the explanation and evidence submitted by the concerned employee relating to the accusation and proposed punishment, shall be sent to the Commission. (2) If, in addition to the documents attached to the file received under sub-section (1), any other details concerning such employee are required, the Commission may request the concerned authority, and it shall be the duty of such authority to provide the details so requested by the Commission. (3) If it appears that the true facts of the subject matter cannot be ascertained solely from the documents received under sub-sections (1) and (2), the Commission may summon the concerned employee before it and make necessary inquiries. (4) If an employee inquired under sub-section (3) requests time to submit a written explanation, the Commission may grant reasonable time. 12. May File Complaint for Review: (1) An employee dissatisfied with the recommendation for promotion made by the Commission may file a complaint for review of such decision to the Commission within thirty-five days from the date of the decision of recommendation. (2) If a complaint is filed under sub-section (1), the Commission shall make an appropriate decision in that regard. Chapter - 4 Recommendation for Appointment to the Post of Judge 13.

Curriculum, Passing Marks and Examination Method: (1) The curriculum and weightage of marks for the examination conducted by the Commission for recommending appointment to the post of District Judge shall be as determined by the Commission after consultation with the Public Service Commission, the Judicial Council and experts in relevant subjects. (2) While preparing the curriculum under sub-section (1), the work to be performed while holding the post of judge shall be analyzed, and the work of such post and educational qualification shall also be taken as a basis. (3) While preparing the curriculum under sub-section (1), matters including the date on which the curriculum shall come into effect, full marks for each subject, the examination system, the medium of examination (language), the weightage of marks for questions and time shall be included. (4) To pass the examination conducted by the Commission for recommending appointment to the post of District Judge, a candidate must obtain at least Amended by Some Nepal Acts Amendment Act, 2062.forty percent marks in each paper. (5) The examination method, examination fee and other related provisions for the examination conducted by the Commission for recommending appointment to the post of District Judge shall be as prescribed. 14. Publication of Advertisement: (1) Upon a request from the Judicial Council to the Commission for filling a post of District Judge, the Commission shall publish an advertisement for filling such post in accordance with sub-section (2) of section 10 of this Act. (2) The advertisement published under sub-section (1) shall specify the deadline for submitting application forms, the number of vacant posts, the examination fee and such other matters as determined by the Commission as required. 15. May Reject Application: If an application submitted by a candidate pursuant to the advertisement published under section 14 is not in the format determined by the Commission or if the candidate lacks qualifications as per the Constitution, the Commission may reject the application of such candidate before the conduct of the examination. 16.

May Cancel Advertisement or Examination: (1) If the Judicial Council makes a written request, stating reasons, to cancel an advertisement published under section 14 before the conduct of the examination, stating that the post does not need to be filled or is not required under such advertisement, the Commission may cancel such advertisement. (2) If any kind of irregularity occurs at the examination center conducted by the Commission, or if the examination cannot be conducted partially or fully due to any hindrance or obstruction, the Commission may, stating the reason therefor, cancel the examination of that day or the examination partially or wholly related to the relevant advertisement. 17. To Get Examination Fee Refunded: (1) If an application is rejected under section 15 or an advertisement is cancelled under sub-section (1) of section 16, the concerned person shall get back the examination fee taken by the Commission for such advertisement. (2) To get the examination fee refunded under sub-section (1), an application must be submitted to the Commission within the period prescribed by the Commission. 18. Question Paper Setting, Moderation and Conduct of Examination: (1) The Commission shall, while setting question papers for the examination, have it done by competent persons or experts in the relevant subject. (2) Competent persons or experts for setting question papers under sub-section (1) shall be provided confidentially with the curriculum of the relevant subject, sample questions, conditions to be followed while setting question papers, and other necessary details. (3) Generally, five sets of question papers for each subject shall be prepared or caused to be prepared for the examination conducted under any one advertisement. (4) Question papers shall be caused to be prepared by taking into account the time of receiving the demand for vacant posts according to the annual schedule of the Commission and the stock position in the question paper bank. (5) Moderation of question papers prepared under sub-section (1) shall be done by one or more competent persons or experts as required. Such moderation of question papers may be done separately by two or more groups. (6) While moderating question papers under sub-section (5), questions shall be included proportionally from all syllabus portions (sections, groups, subgroups) as far as possible.

While selecting questions, they must be of such a nature that a candidate can answer them within the time prescribed in the curriculum. (7) While moderating questions, attention shall be paid to the following matters: - (a) not to include controversial or ambiguous questions, (b) not to include questions outside the curriculum, (c) to include questions of a nature matching the level of the post of District Judge, (d) while preparing sets of question papers, ensure that questions within one set are not repeated, (e) to follow the procedure prescribed by the Commission regarding the moderation of questions. (8) The Commission shall conduct the examination according to the advertisement published for the filling of the post of District Judge, as mentioned in such advertisement, to select candidates. (9) The setting or moderation of question papers for the examination conducted by the Commission, the qualification of experts for setting or moderating question papers, the conditions to be followed by them, and other arrangements relating to the conduct of the examination shall be as determined by the Commission. 19. To Prohibit or Expel: (1) If a candidate does any irregular act at any examination center or violates the conditions prescribed by the Commission, or if any person takes the examination in another person's name, the Commission may cancel the examination of such candidate and prohibit such candidate or the person taking the examination in another person's name from being a candidate in examinations conducted by the Commission for up to five years. (2) If any candidate causes obstruction or hindrance to the conduct of the examination by creating a disturbance at any examination center, the center chief may immediately expel such candidate from the examination center, and upon such expulsion, the examination of such candidate in all subjects under that advertisement shall be automatically cancelled. (3) If a government employee commits an act under sub-section (1), such employee shall also be subject to departmental action. 20.

To Write for Departmental Action: (1) If an employee involved in the conduct of examination under this Act

commits any irregular act at the examination center, the Commission may immediately remove such employee from work and write to the concerned body for departmental action. (2) If a person other than an employee involved in the examination conducted by the Commission commits any irregular act at the examination center, such person shall be immediately removed from work. (3) The Commission may keep a record of the person removed under sub-section (2) and prohibit such person from being involved in the work of examinations conducted by the Commission in the future. (4) If the Commission writes for departmental action under sub-section (1), the concerned authority shall conduct a departmental action against the concerned employee in accordance with the prevailing law and inform the Commission thereof. 21. Code Number on Answer Book: (1) After the written examination conducted by the Commission is completed, a first and second code shall be placed on the answer book. (2) For the purpose of evaluating answer books through an electronic system, a barcode may be used as prescribed on the answer book. (3) If a barcode is used under sub-section (2), a separate code number need not be used. (4) Unless otherwise provided by the Commission, generally the responsibility of placing or causing to place the first code on the answer book shall lie with the chief of the concerned branch of the Commission. (5) After placing the first code on the answer book, the second code shall be placed by the Secretary of the Commission. (6) The sealed packet of the half-cut containing the first code placed on the answer book shall be in the custody of the Secretary of the Commission or an employee designated by him/her, and the sealed packet of the half-cut containing the second code shall be in the custody of the Chairperson or a Member or an employee of the Commission designated by him/her. (7) After a written request from the concerned branch to publish the result of the written examination, the sealed packet of the half-cut shall be made available to the concerned branch. 22. Evaluation of Answer Books: (1) After placing the code number on the answer book pursuant to section 21, the answer books shall be evaluated by experts or competent persons. (2) The qualification of experts or competent persons for evaluating answer books, the conditions to be followed, or other arrangements relating to the place of evaluation of answer books shall be as prescribed. 23.

Examination Result: (1) While publishing the result of the written examination, the Commission shall publish the result mentioning, in alphabetical order, the name, surname, and roll number of the candidate who has obtained the highest marks out of the candidates who have passed such examination, in such number as prescribed in proportion to the vacant posts. (2) While publishing the result under sub-section (1), the date, time and place of the interview shall also be mentioned. 24. May Form Committee: (1) For the examination conducted by the Commission, the Commission may form an Examination Conduct Committee and an Interview Committee as prescribed under the chairpersonship of the Chairperson of the Commission or a Member designated by him/her. (2) The Interview Committee under sub-section (1) shall include an expert designated by the Chairperson. (3) Other provisions relating to the conduct of examination and interview shall be as prescribed. 25. Publication of Final Result: After completing all processes relating to the examination taken by the Commission, the final result shall be published according to the merit order, stating the roll number, name, surname and address of the candidate who obtained the highest marks. 26. Recommendation for Appointment: The Commission shall recommend, to the Judicial Council, the candidate under section 25 for appointment to the post of District Judge according to the merit order. 27. May Cancel Recommendation: (1) If any detail submitted by a candidate for the examination taken for recommending appointment to the post of District Judge pursuant to the advertisement of the Commission is found to be false or incorrect, the Commission shall cancel the examination or recommendation for appointment of such candidate, and if such candidate has already received an appointment, the Commission shall recommend to the Judicial Council to initiate necessary action in accordance with the prevailing law. (2) The person submitting false or incorrect details under sub-section (1) may be prohibited from participating in

examinations conducted by the Commission for up to five years. (3) Other provisions relating to the recommendation for appointment of a candidate shall be as prescribed. 28. Use of Electronic Medium: The Commission may use electronic medium for advertisement, publication of results, and other matters as prescribed, for recommending appointment to the post of District Judge. 29. Assistance in the Work of the Commission: (1) For the work relating to the conduct of examinations of the Commission, constitutional bodies, government bodies or educational institutions shall provide assistance by making available employees, buildings or classrooms as per the demand of the Commission. (2) Allowances for employees involved in the work of the Commission under sub-section (1) and rent for buildings or classrooms used shall be borne by the Commission. 30.

Confidentiality of Documents: (1) Documents and papers relating to the examination conducted by the Commission shall remain confidential, and the Commission shall not be obliged to make such papers public except upon an order of a court. (2) Notwithstanding anything contained in sub-section (1), examination-related documents or details as prescribed by the Commission may be given to the concerned person or made public. Chapter - 5 Miscellaneous 31. May Give Appropriate Interpretation while Recommending: While making any recommendation pursuant to the Constitution or this Act, if any provision of the prevailing law relating to the Service is unclear or ambiguous, or if no provision is made in the law on any matter, the Commission may give an appropriate interpretation not inconsistent with the Constitution and the prevailing law. 32. May Take Service of Expert or Competent Person: (1) For the examination-related work to be performed by the Commission, the Commission may take the service of an expert, competent person or specialized body in the relevant subject. (2) For the purpose of taking service under sub-section (1), the nomination or selection of an expert, competent person or specialized body shall be made by the Chairperson. (3) For the service taken under sub-section (1), the concerned expert, competent person or body shall be paid such amount, facility or service fee as determined by the Commission. 33. May Conduct Research and Promotional Activities: The Commission may conduct research and promotional activities from time to time to make the Judicial Service competent and effective and to increase attraction towards the Judicial Service. 34. Coordination and Cooperation: The Commission may coordinate with or establish mutual relations and take assistance from national and international institutions established with similar objectives. 35. Delegation of Powers: The Commission may delegate any of its powers to any Member, committee, Secretary of the Commission or gazetted employee of the Service, to be exercised and performed subject to the conditions prescribed by the Commission. 36. Contact with Government of Nepal: The Commission shall, while contacting the Government of Nepal, do so through the Ministry of Law, Justice and Parliamentary Affairs. 37. Power to Make Rules: The Commission may make rules for implementing this Act, and such rules shall come into effect upon publication in the Nepal Gazette. 38. Repeal and Saving: (1) The Judicial Service Commission Act, 2048 (1991) is hereby repealed. (2) All acts and proceedings done under the Judicial Service Commission Act, 2048 (1991) shall be deemed to have been done under this Act.